following orders and ruling.

RULING

1. The settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on October 7, 2025 attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on July 22, 2026

18. 9:00 AM CASE NUMBER: C24-01377
CASE NAME: RAMON RODRIGUEZ VS. DISTRICT COUNCIL OF CONTRA COSTA COUNTY, SOCIETY OF ST. VINCENT DE PAUL, DIOCESE OF OAKLAND, A NONPROFIT CORPORATION
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
****TENTATIVE RULING:****

Summary

Plaintiff Ramon F. Rodriguez ("Plaintiff") filed a Motion for an order granting Final Approval of the Class Action and PAGA Settlement Agreement ("Settlement" or "Settlement Agreement") between Plaintiff and Defendants District Council Of Contra Costa County, Society of St. Vincent De Paul, Diocese of Oakland, a nonprofit corporation; St. Vincent De Paul Society of Contra Costa County; and St. Vincent De Paul Society ("Defendants") (collectively, "the Parties"). This Motion is unopposed and is **granted**. No appearance is required at the hearing on July 22, 2026.

Background

Plaintiff moves for final approval of the Class Action and PAGA Settlement Agreement with Defendants. This action arises from allegations that Defendants, who operate thrift stores to fund social welfare programs, violated the California Labor Code and Business and Professions Code by failing to pay minimum and overtime wages, failing to provide meal and rest periods, failing to indemnify necessary business expenses, failing to timely pay final wages, and failing to provide accurate wage statements. Plaintiff, a former Donations Attendant employed from November 2019 to August 2023, filed this action on May 23, 2024, and served notice upon the Labor and Workforce Development Agency ("LWDA") on May 21, 2024, subsequently filing a First Amended Complaint adding PAGA claims on July 26, 2024. Following a full-day mediation with mediator Steve Serratore on May 19, 2025, the Parties reached a global settlement. The Court previously granted preliminary approval on November 18, 2025, and directed notice to the class.

The Settlement Class is defined as all current and former hourly employees employed by Defendants in California who were classified as non-exempt during the Class Period of May 23, 2020, through July 19, 2025. The Class consists of 131 Participating Class Members who worked approximately 7,142.9 workweeks during the Class Period. Notice was effectuated by mailing Class Notice Packets on December 4, 2025, following address verification through the National Change of Address database; of 131 notices mailed, 128 were successfully delivered following skip tracing efforts for undeliverable notices. As of the January 19, 2026 response deadline, the Settlement Administrator received no requests for exclusion, no objections to the Settlement, and no disputes regarding the allocation of qualifying workweeks.

The Settlement provides for a non-reversionary Gross Settlement Amount of $175,000.00, to be allocated as follows:

a. Attorneys' fees of $58,333.33 (representing 33.33% of the Gross Settlement Amount) to Class Counsel, Sentinel Firm, APC;
b. Litigation costs of $18,297.60 to Class Counsel (which is $1,702.40 under the $20,000.00 cap, with such excess to be redistributed to the class);
c. A class representative incentive award of $10,000.00 to Plaintiff;
d. PAGA penalties of $15,000.00; and
e. Settlement Administration costs of $6,500.00 to Apex Class Action Administration, LLC.
f. The resulting Net Settlement Amount of approximately $85,166.67 shall be distributed to Participating Class Members.

The Net Settlement Amount shall be distributed to Participating Class Members on a pro rata basis according to their proportionate share of workweeks worked during the Class Period, calculated by dividing the Net Settlement Amount by the total number of workweeks worked by all Participating Class Members and multiplying the result by each individual's workweeks. Based upon this calculation, the highest Individual Settlement Award is approximately $2,983.57, and the average Individual Settlement Award is approximately $650.13. Defendants shall fund the Settlement within sixty days of the Effective Date.

With respect to the PAGA component, Defendants shall pay penalties of $15,000.00, with seventy-five percent ($11,250.00) allocated to the LWDA and twenty-five percent ($3,750.00) distributed to Aggrieved Employees. The Aggrieved Employees are defined as all current and former hourly employees employed by Defendants in California who were classified as non-exempt during the PAGA Period of May 21, 2023, through July 19, 2025, totaling 75 individuals. Individual PAGA Payments shall be calculated based upon each Aggrieved Employee's proportionate share of PAGA Period Pay Periods worked, resulting in an average payment of approximately $50.00, a highest payment of approximately $123.38, and a lowest payment of approximately $0.72.

Upon the Effective Date, all Settlement Class Members who have not validly excluded themselves shall be bound by the release provisions and shall be permanently barred and enjoined from instituting, maintaining, or prosecuting any released claims against the Released Parties. The Settlement constitutes a full and final resolution of all claims arising from or relating to the allegations in the Operative Complaint and the PAGA Notice.

The Court finds that the Settlement is fair, adequate, and reasonable, representing the product of arm's-length negotiations between experienced counsel following sufficient investigation and mediation. The absence of objections and opt-outs, combined with the meaningful recovery for the class and the resolution of PAGA claims, confirms that the Settlement merits final approval. The Court retains jurisdiction to enforce the terms of the Settlement and directs the Parties to effectuate the Settlement according to its terms. The Court further sets a final compliance and accounting hearing for June 2027 to monitor the completion of the distribution process.

Analysis

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees and Costs

Plaintiff seeks one-third of the total settlement amount as fees, $58,333.33, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.)

The Court finds that Class Counsel's request for attorneys' fees and costs of $18,297.60 are reasonable in light of the 91.90 hours expended, the excellent results obtained, and the contingent nature of the representation.

The requested class representative incentive award of $10,000.00 to Plaintiff is appropriate compensation for his substantial efforts in prosecuting this action. The Settlement Administration costs of $6,500.00 to Apex Class Action Administration, LLC are approved as reasonable and necessary for the distribution of notice and administration of the Settlement.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing, and is ordered to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on July 22, 2026.

19. 9:00 AM CASE NUMBER: C25-03259
CASE NAME: BRANDON WOODARD VS. RYAN KIM
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KIM, RYAN MAXWELL
****TENTATIVE RULING:****

Before the Court is a motion to compel arbitration and stay the action, filed by defendants, Kaiser Foundation Health Plan, Inc., The Permanente Medical Group, Inc., Kaiser Foundation Hospitals, Kaiser Permanente Insurance Co., Ryan Maxell Kim, Doertlis Kuschel Schultze-Allen, and Sara Eskandari Larkin (collectively "Kaiser"). Kaiser's motion is not a petition as described in the papers